

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olubukola Ajayi	Team: Team # 4	CCRB Case #: 201109818	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/29/2011 1:15 PM	Location of Incident: in front of 164-18 Jamaica Avenue	18 Mo. SOL 1/29/2013	Precinct: 103		
Date/Time CV Reported Fri, 07/29/2011 1:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/29/2011 1:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Moore	00469	949359	PBQ/S
2. POM Brian Lapp	01940	949198	PBQ/S

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Moore	Discourtesy: PO Brian Moore spoke obscenely to § 87(2)(b)	A . Unsubstantiated
B . POM Brian Lapp	Abuse: PO Brian Lapp questioned § 87(2)(b)	B . Exonerated
§ 87(2)(g), § 87(4-b)		

Case Summary

On July 29, 2011, § 87(2)(b) filed the following complaint over the phone with the CCRB (encl. 9).

At approximately 1:15 p.m. on July 29, 2011, § 87(2)(b) interacted with PO Brian Moore and PO Brian Lapp, both of whom are from Queens South Patrol Borough, in front of 164-18 Jamaica Avenue in Queens. The following allegation resulted from the officers' actions:

- **Allegation A – Discourtesy:** PO Brian Moore spoke obscenely to § 87(2)(b) § 87(2)(g), it is recommended that **Allegation A** be closed as **unsubstantiated**.
- **Allegation B – Abuse of Authority:** PO Brian Lapp questioned § 87(2)(b) § 87(2)(g) it is recommended that **Allegation B** be closed as **exonerated**.
- § 87(2)(g), § 87(4-b)

Mediation was offered to § 87(2)(b) during a phone interview on August 2, 2011, and during his in-person interview at the CCRB on August 12, 2011. On both dates, § 87(2)(b) rejected mediation and asked to have his complaint investigated.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male, who § 87(2)(b) has black hair and dark brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on August 12, 2011 (encl. 10-16). He provided a phone statement to the CCRB on August 2, 2011. § 87(2)(g)

At approximately 1:15 p.m. on July 29, 2011, § 87(2)(b) was standing in front of 164-18 Jamaica Avenue in Queens, waiting for the traffic light to change so he could cross over to the north-west side of the intersection. While he was waiting for the light to change, he saw two uniformed white male officers walking towards him as they walked west-bound on Jamaica Avenue. The shorter of the two officers (who § 87(2)(b) identified by looking at his badge as PO Brian Lapp of the Queen South Patrol Borough) stared at § 87(2)(b)'s waist area as he approached and walked past § 87(2)(b) § 87(2)(b) looked at PO Lapp as he continued to stare at his waist area after passing him. The taller of the two officers (who § 87(2)(b) identified by looking at his badge as PO Brian Moore of the Queen South Patrol Borough), who was walking approximately eight or ten feet behind PO Lapp, asked § 87(2)(b) what the "fuck" was he looking at. § 87(2)(b) responded by saying, "What the fuck are you looking at?" PO Lapp, who may have heard PO Moore's discourteous comment, turned around at this point. There were five or six acquaintances of § 87(2)(b) in the vicinity that could have heard PO Moore's discourteous comment. § 87(2)(b) provided the CCRB with the nick names of two of these individuals ("§ 87(2)(b)" and "§ 87(2)(b)" or "§ 87(2)(b)" and said that he did not know the real names, nick names or contacts of the remaining individuals.

PO Lapp approached § 87(2)(b) who had a bunch of keys sticking out from the front right pocket, and asked him where he got the handcuff key that was in his bunch of keys. § 87(2)(b)

§ 87(2)(b) asked PO Lapp what was the problem with his handcuff key and PO Lapp said that it was illegal for him to have it. § 87(2)(b) asked why handcuff keys were sold in flea markets for ten dollars if they were illegal. PO Lapp asked if he bought the handcuff key from a flea market. § 87(2)(b) said he used to do security and that was the reason why he still had the key. § 87(2)(b) told PO Lapp that even if the handcuff keys were illegal, is that how you approach the public. PO Lapp asked § 87(2)(b) if he could see his identification, and § 87(2)(b) asked PO Lapp why he needed to see his identification. PO Lapp said because he needed to. § 87(2)(b) asked PO Lapp again why he needed to see his identification and if he was going to frisk him. PO Lapp said he was going to frisk him and said that it seemed § 87(2)(b) had a lot of run-ins with the law. § 87(2)(b) said he did not have a lot of run-ins with the law § 87(2)(b)

§ 87(2)(b) When PO Lapp asked him for the name of his relative that worked at the 113th Precinct, § 87(2)(b) said that was not important and that he should call this sergeant because he was not going to give him his identification. PO Lapp said if he was to call his sergeant, § 87(2)(b) will be going away in cuffs. When § 87(2)(b) asked PO Lapp if he was serious, PO Lapp said yes. § 87(2)(b) said he was going to report PO Lapp and PO Moore. After which, he asked PO Lapp for his name and PO Lapp showed him his badge.

When PO Lapp asked § 87(2)(b) for his identification, § 87(2)(b) gave PO Lapp his Connecticut State Driver's license. PO Lapp then passed § 87(2)(b)'s license to PO Moore, who moved approximately four feet away to write him a summons. PO Lapp asked § 87(2)(b) where he was from. When § 87(2)(b) said he was from Jamaica, PO Lapp asked him if he could come to America and do whatever he feels like. § 87(2)(b) said, "excuse you," and asked if he was going to be issued a summons. PO Lapp told him that he will soon see. Some minutes later, PO Moore issued summons # § 87(2)(b) to him. The officers then walked away from the scene.

Attempts to Contact Additional Civilian

On September 12, 2011, the individual known only as "§ 87(2)(b) or "§ 87(2)(b) was called on the telephone number provided for him by § 87(2)(b) and an unidentified male responded to the call, but when the undersigned investigator indicated that she could not hear him clearly, the call was disconnected. On the same date, "§ 87(2)(b) was called on the number provided for him by § 87(2)(b) but no message could be left because an automated message indicated that the mail box belonging to the subscriber was full and cannot accept any messages. From September 26, 2011, to October 3, 2011, "§ 87(2)(b) was called three times on the telephone number provided by § 87(2)(b) but no message was left each time because an automated message indicated that the mail box belonging to the subscriber was full and cannot accept any messages. Absent an actual name or an address, no further contact attempts could be made to "§ 87(2)(b)

The individual known only as "§ 87(2)(b)" was identified as a witness in this case by § 87(2)(b) who did not have any contact information for him. Absent a name, an address or telephone number, no contact attempts could be made to "§ 87(2)(b)." § 87(2)(b)

NYPD Statements:

Subject Officer: PO BRIAN MOORE

- PO Brian Moore is a § 87(2)(b)-old white male who § 87(2)(b) has blonde hair and blue eyes.
- PO Moore was assigned to impact foot post duty at the Queens South Patrol Borough with PO Lapp. PO Moore was dressed in uniform and worked from 12:00 p.m. to 8:35 p.m.

Memo Book

His memo book indicated that he observed § 87(2)(b) standing in the middle of the

sidewalk causing pedestrians to walk around him. § 87(2)(b) refused to move from the front of 164-18 Jamaica Avenue after he was instructed to do so, multiple times. § 87(2)(b) who was identified by his Connecticut license, was issued a criminal summons # § 87(2)(b) for § 87(2)(a) 160.50 (encl. 17-19).

Summons

§ 87(2)(a) 160.50

CCRB Testimony

PO Moore was interviewed at the CCRB on October 20, 2011 (encl. 17-23). At approximately 1:15 p.m. on July 29, 2011, he and his partner, PO Lapp, were walking to their duty post from the south-east corner of Jamaica Avenue and 165th Street in Queens. PO Lapp was two steps ahead of him. As they were walking to their post, PO Moore saw a male (identified through investigation as § 87(2)(b) and a group of § 87(2)(b)'s friends (less than five of them) standing in the middle of the sidewalk in front of a Bank of America, located at 164-18 Jamaica Avenue, for a minute or two. § 87(2)(b) and his group of friends were preventing people from entering and exiting the bank as they stood in the middle of the sidewalk. PO Moore suspected that § 87(2)(b) might be casing the location or acting as a look out because the area was a high crime area and because § 87(2)(b) was not shopping or doing anything. When PO Moore and PO Lapp approached the group, § 87(2)(b)'s friends immediately dispersed. He did not ask § 87(2)(b) "What the fuck was he looking at," and he did not hear PO Lapp make this comment to § 87(2)(b). PO Moore and PO Lapp did not use any profanities when speaking to § 87(2)(b). He did not recall if he saw a handcuff key or bunch of keys on § 87(2)(b)'s person. He also did not hear PO Lapp asking § 87(2)(b) where he got his handcuff keys from. PO Moore asked § 87(2)(b) what he was doing at the incident location and § 87(2)(b) did not provide any explanation. When he told § 87(2)(b) to disperse if he had no business at the incident location, § 87(2)(b) told him that he would like to stay there. PO Moore told § 87(2)(b) about two or three times to leave the scene and each time, § 87(2)(b) refused to leave the scene. PO Moore asked § 87(2)(b) for his identification and § 87(2)(b) initially did not want to provide it. § 87(2)(b) later provided his identification when PO Moore asked him again for his identification. PO Moore then wrote and issued § 87(2)(b) a criminal summons for blocking pedestrian traffic. He did not recall if § 87(2)(b) ever asked him or PO Lapp to call their sergeant to the scene. He did not hear PO Lapp telling § 87(2)(b) that if a sergeant was to be called to the scene, he would be going away in cuffs. At some point, § 87(2)(b) asked him and PO Lapp for their names and badge numbers. PO Moore did not know if he verbally provided his information to § 87(2)(b) or if he directed § 87(2)(b)'s attention to his badge. PO Moore indicated that his name and badge number were on his summons and that he is sure that § 87(2)(b) saw this information on his badge or uniform.

Witness Officer: PO BRIAN LAPP

- PO Brian Lapp is a § 87(2)(b)-old white male who § 87(2)(b) has blonde hair and has blue eyes.
- PO Lapp was assigned to Impact foot post 7 at the Queens South Patrol Borough with PO Moore. PO Lapp was dressed in uniform and worked from 12:00 p.m. to 8:35 p.m.

Memo Book

He had no relevant entries in his memo book (encl. 24-25).

CCRB Testimony

PO Lapp was interviewed at the CCRB on October 20, 2011 (encl. 24-28). § 87(2)(g)

At approximately 1:15 p.m. on July 29, 2011, he was walking ahead of his partner, PO Moore, as they walked west-bound on Jamaica Avenue in Queens. At some point, he noticed that PO Moore was not behind him. When he turned around, he noticed that PO Moore had stopped a male (identified through investigation as § 87(2)(b) and six of § 87(2)(b)'s male friends in the middle of the sidewalk, which was right in front of the Bank of America, located at 164-18 Jamaica Avenue. PO Lapp, who did not know how PO Moore stopped § 87(2)(b) and his friends, approached the group. PO Moore told him that he had observed § 87(2)(b) standing in the middle of the sidewalk with his friends doing nothing. PO Lapp indicated that the people who usually stood in front of the Bank of America were illegal livery drivers, who usually parked their vans in the parking space in front of the bank, taking the parking meters for the entire date as they ushered people into their illegal taxi vans. PO Lapp did not hear PO Moore telling the group to disperse, he only knows that all of § 87(2)(b)'s friends left the scene after PO Moore had stopped § 87(2)(b). PO Moore asked § 87(2)(b) twice to leave the scene and each time § 87(2)(b) refused. When PO Moore asked § 87(2)(b) why he was standing there, he was unable to provide a reason for standing there.

At some point, when PO Lapp saw a handcuff key hanging from the key hole pocket of § 87(2)(b)'s pants, he asked § 87(2)(b) why he had a handcuff key and § 87(2)(b) was not able to provide an explanation. § 87(2)(b) did not tell him that he was a security officer or that he worked as an auxiliary officer. PO Lapp did not hear PO Moore asking § 87(2)(b) "What the fuck was he looking at," and he did not make this comment to § 87(2)(b). He and PO Moore did not use any profanities when speaking to § 87(2)(b). PO Moore asked § 87(2)(b) to provide identification and § 87(2)(b) was hesitant to provide one. § 87(2)(b) kept asking PO Moore why he wanted his identification, but he did not curse at PO Moore. § 87(2)(b) provided his identification to PO Moore a minute later. PO Lapp later said he was not sure if § 87(2)(b) gave PO Moore his identification. § 87(2)(b) did not ask him or PO Moore to call their sergeant down to the scene. Mr. Lapp did not ask § 87(2)(b) if he thought he could do whatever he feels like because he was in America. While PO Moore was writing the summons, § 87(2)(b) asked him and PO Moore for their names and badge numbers. Before he could respond to § 87(2)(b)'s request, § 87(2)(b) walked up to him and took down the information that was on his badge. § 87(2)(b) also did the same thing to PO Moore. When PO Moore was done writing up the criminal summons for § 87(2)(a) 160.50, he handed it to § 87(2)(b). PO Lapp said he has seen § 87(2)(b) at that location since the incident.

Disposition of Summons

- § 87(2)(a) 160.50

Status of Civil Proceeding

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 17, 2012, with regard to the incident (encl. 50).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaints: § 87(2)(b)

Subject Officers CCRB History

- PO Moore and PO Lapp have been members of service for one year and have no substantiated CCRB allegations against them (encl. 6-7).

Conclusions and Recommendations

Identification of Subject Officers

PO Moore and PO Lapp are identified as the subject officers in this case because they matched the description provided by § 87(2)(b) and because they acknowledged that they interacted with § 87(2)(b) on the incident date.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Discourtesy: PO Brian Moore spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO Moore asked him what the “fuck” was he looking at, when he was looking at PO Lapp. PO Moore denied this allegation, and PO Lapp did not hear PO Moore making this comment to § 87(2)(b) § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: PO Brian Lapp questioned § 87(2)(b)

It is undisputed that PO Lapp asked § 87(2)(b) if there was a handcuff key in the bunch of keys that was hanging from his front right pant pocket. According to *People v. DeBour*, 40 N.Y. 2d 210, 213 (1976), police officers, in absence of any concrete indication of criminality, could approach the defendant on the street for the purpose of requesting information... based upon articulable reason” (encl. 1-2). § 87(2)(g)

, it is recommended that **Allegation B** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Team: 4

Investigator:	_____	_____	_____
	Title/Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date